WEB EXCLUSIVE
'Death penalty: Courts cannot just ignore the law.'
— By Anup Surendranath
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WORDLY WISE
The mind is not a vessel to be filled, but a fire to be kindled.
— Plutarch

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IN 1932
BECAUSE THE TRUTH INVOLVES US ALL

In IIT, student death and a reckoning

TWO DEATHS within a month at two of India's most storied institutions of excellence come as a sobering moment in a nation that prizes them as tools of meritocratic ascent. At IIT-Bombay, a second-year BTech student took his life hours after he was allegedly found adopting unfair means in an examination. Following student agitation, the institute has suspended the dean who reported him, even as faculty members have rallied behind their colleague. Last month, at IIT-Delhi, the death by suicide of an MSc student set off weeks of protest and questions about the responsibilities of an institution towards those in its care. Behind both these instances are campuses struggling to find a language in which accountability and compassion can coexist.

It would be a mistake to read in these tragedies evidence that some of the country's brightest young people lack resilience. Those who clear these competitive examinations have already proved a formidable capacity for endurance. The larger question centres on the old imagination of authority in premier campuses, which are more socially and culturally diverse than ever before. With that diversity comes different experiences of class, caste, language, aspiration and vulnerability. The caste discrimination alleged by the deceased student's family is a reminder that diversity without a corresponding shift in institutional culture can create new forms of exclusion, that a system designed principally around teaching, testing, rigour and discipline cannot address the change on campus solely through the addition of a counsellor's office. It requires professors and administrators to hear what young people — many of them away from home for the first time — are trying to say about isolation, stigma and fear. Faculty, too, working within a system of administrative protocol and expected to anticipate crises for which they were never trained, need clarity about what is expected of them when a student is in distress, and the assurance that decisions taken in the best interest and following guidelines are not used to scapegoat them afterwards.

None of this is achieved in the sound and fury of the immediate aftermath of a tragedy. Campuses need guidelines that preserve academic integrity. Along with strong counselling and grievance mechanisms, they need a frank institutional reckoning with caste and hierarchy. Meaningful student representation should become ordinary institutional practice. Between 2006 and 2026, there have reportedly been over 170 student deaths across various IIT campuses.The role of an institution of excellence cannot be limited to the mentoring of high performers. It must also create a space where failure is not insurmountable. That task will never be easy. But the measure of a campus lies in whether academic excellence can be anchored in student wellbeing.

SC message: Illegal arrest cannot be papered over

ON MONDAY, the Supreme Court invoked Article 22 (1) to affirm that an arrested person kept in the dark about the grounds of arrest was entitled to immediate release. It reiterated that communicating the reasons for arrest in writing and in a language the arrestee understands is "non-negotiable", and that it applies "across the spectrum, including offences under the BNS or under special enactments". Ruling that probing agencies cannot shrug off the breach of Article 22 (1), the Court observed that such an omission would amount to the violation of the accused's fundamental rights. Its two-judge bench also laid down strict procedure for re-arresting such a person.

In a series of significant judgments in the last three years, the apex court has consistently rejected the argument that the gravity of an offence could justify a departure from constitutional safeguards under Article 22(1). On Monday, too, the Court rejected the state's argument that grave allegations must buy the police room to manoeuvre. Liberty, the Court held, does not become negotiable because the charge is serious. "Any attempt to encroach upon the fundamental rights guaranteed under Article 22(1) of the Constitution... would vitiate the process of arrest and remand. Such a fundamental right being sacrosanct, cannot be breached under any circumstances." The latest ruling raises the bar for the state: An officer who violates the procedure must face a departmental inquiry; the case must be handed to a different officer, and any attempt to re-arrest the individual needs an endorsement by a superior officer and a magistrate's independent satisfaction within a week. The bench also said the release after an unconstitutional arrest should not be treated as bail — the detention was illegal to begin with. This distinction is significant because bail can be revoked by the state, but an unconstitutional act, once established, cannot be undone by the same authority simply by issuing fresh paperwork.

The ruling sends a message to the executive that procedure is not mere paperwork. Its direction to high courts to award "suitable mandatory compensation" in case of violation of Article 22 is important because a finding of illegality cannot be an end in itself. The verdict recognises the harm caused and suffered and makes the state accountable for the unlawful action.

After the rat race, the joy of work

WHAT HAPPENS to winners of the rat race? Athletes offer the starkest example: Most reach the pinnacle of their career when they are young, and the rest of life can, if they aren't careful, become a mere reminiscence of the glory days. Then there are the tech bros, with their billions, discovering MMA and bodybuilding, focusing on space and Mars, while the source of their wealth erodes people and nature. Most people accept retirement, hoping merely to rest after a lifetime of labour. For each, though, there is something to learn from Yoshihiko Noda's quiet devotion to his work.

Noda, finance minister of Japan and prime minister in 2011-12, spends a few hours every morning handing out pamphlets at Minami-Funabashi Station in Chiba. They cover issues such as disaster insurance and governance reform. Noda got his start in Chiba's local politics and it is a routine that, despite scaling the heights of the political ladder in Tokyo, he has returned to. Visible in his gesture is the difference between a job and a vocation.

The trappings of success can obscure what led to it in the first place. A writer, playing a part in literary salons, forgets the misery and joy of writing. The musician forgets the harmonies and discord that made her great, and the politician forgets the need to make things better. Noda, it seems, has not forgotten what made him choose the career he did. Perhaps the tech bros will take inspiration and stick to building apps.

A world on the brink, diplomacy and politics as usual



PRATAP BHANU MEHTA

SOON, Xi Jinping and Donald Trump will meet. World leaders will descend on the UN General Assembly. Yet another forum of leaders, P4M, with Canada, Europe, Brazil, and Kenya, was just announced. The SCO met at Bishkek. The BRICS summit has just concluded in Delhi. The liturgy of international politics continues. Talking is usually good. This has helped put a floor under the multiple crises. In some cases, like trade, these summits have opened up new options for the world and created new alliances. It has, to use the current buzzword, helped build resilience. Who knows what might have happened without all this activity? In all likelihood, we would be worse off.

At the same time, it is not difficult to shake off the deep vertigo this activity is inducing. One of the greatest novels of the 20th century, Robert Musil's *The Man Without Qualities*, had captured this well. It is, psychologically, a richly layered novel. I first read it right after the fall of the Berlin Wall, when its pessimism about modernity seemed out of place. But its disorienting force lingers in two respects. The first is the sense of a civilisation that is sophisticated, intelligent, inventive, smart, capable, refined, even if a little amoral and confused. Yet, it has no sense of how to mobilise judgement or political action to avoid impending catastrophe. But the second thing is the weird juxtaposition between a sense of impending danger, even catastrophe, and the normal routines of ordinary life and diplomacy. Leaders and people were not exactly ignorant of what was going on. They were not quite "sleepwalking". Everyone was aware of the momentous changes in politics, in technology, in society. They were daily news. But in a way, that was part of the paradox. Catastrophe talk or talk of dangers was just another one of those things. It is as if, in our times, the catastrophic melting of the glaciers and not quite getting the proportion of ice right in a cold coffee were on the same level of attention.

There is, of course, a virtue in not catastrophising; frenzy can produce fatalism or bad decisions. But the yawning gap between the machinery and protocols of international politics and the underlying historical dangers is quite striking. One temptation is to put this down to the absence of global leadership. One of the disturbing features of our current condition is that the fate of the world seems increasingly concentrated in the hands of a few individuals: Trump, Xi, a bunch of technology executives, and maybe a bunch of energy barons. In such a world, the characteristics of the few individuals seem to matter disproportionately. And yet never was the world more bereft of global leadership, if by leadership we mean the ability to rise above narrow self-interest and become a bridge between the interests of individual nations and global interest, between the present and the future. No one will expect Xi or Trump to play that role.

But you have to wonder if this is just about the quality of individual leaders we have. While individual leaders seem powerful, they are actually seriously constrained by each other. Neither China nor the United States can unilaterally frame the global order according to their whims. That is a relief. There are no hegemons. Countries can constrain each other. But they cannot produce collective action. Foreign policy is made under domestic constraints, and so it should often be. Governments are accountable to their citizens, who will care about the price of food, fuel, and employment. Domestic audiences in big powers also care about their national advantage: Leaders cannot surrender territory, accept defeat without facing domestic consequences, or be seen to concede technological advances to an adversary. The tension between national and global interests is baked into our sense of the normal. Not saving humanity might eventually be a disaster for any country, but trying to save it will often incur a high cost for the leader now. In normal times, these tensions are part of the fabric of international relations. We live with them, and they can be quite productive.

> You have to wonder: On a simple measure of significant risks to humanity — widespread war, climate change, pandemics, nuclear risks, and now possibly AI — is all this activity amounting to making us safer?

But when the magnitude of the risks has changed considerably, these tensions skirt at the edge of a breaking point, which is where we are now on every issue. In none of the wars that have systemic consequences for the world — Russia-Ukraine, America-Iran, Iran-Saudi, Israel and its neighbours — is there a bargaining solution within the current frameworks of territory, power and prestige. In AI, the incentives to accelerate, when driven by the quest for technological advantage, come just at the moment when the technology requires slowing down, regulation and deeper forms of information sharing. Climate negotiations have proved nearly impossible as each state protects its own energy security. Global debt seems an easy solution to economic woes. We want to continue to act normally when the stakes are no longer normal.

The summits will occur. The commitment to dialogue will be announced. The communiqué will be hailed as a triumph, as it was in the recent BRICS summit. The machinery working gives us a sense of normalcy. But you have to wonder: On a simple measure of significant risks to humanity — widespread war, climate change, pandemics, nuclear risks, and now possibly AI — is all this activity amounting to making us safer?

Musil's subtle point was not that we are foolish, ignorant or even depraved. It was rather that we might be rational, a bit too rational in taking our cues from normal times. Our leaders are doing what they are supposed to do: Preserve economic growth and energy security, compete for technological superiority, worry about the next election, and even stage the pageantry of summits. But conventional rationality and normalcy will not cut it. As in Musil's novel, a character says, "The function of diplomacy is to keep what we have." To this, the character Arnheim gives a dark reply, "Keeping what we have leads to war." The focus on Xi and Trump may make us forget just how stuck, and how much at risk, we are.

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Saving the rhino, restoring grasslands



BHUPENDER YADAV

FOR INDIA, the greater one-horned rhinoceros is much more than an iconic species. It is an integral part of the ecological and cultural landscape of the Brahmaputra floodplains and the Terai grasslands. The animal's historical range extended across the northern Indian Subcontinent, along the Indus, Ganga and Brahmaputra river systems. Today, its wild population in the country is concentrated mainly in Assam, UP and West Bengal. Under Prime Minister Narendra Modi's leadership, India is now pushing for the expansion of the rhino range.

The rhino conservation strategy is guided by the understanding that conservation should not be limited to safeguarding existing rhino concentrations but should work toward establishing secure populations across suitable parts of their historical range. The National Conservation Strategy for the rhinoceros, launched in 2019, provides a framework for strengthening existing populations, restoring the species to suitable former habitats, maintaining genetic security and habitat connectivity, promoting scientifically planned translocations and building climate resilience into rhino conservation.

The rhino's story in India is a story of recovery. The animal's numbers have increased from around 1,500 in the 1980s to more than 4,000 as of September 2024.

The five-year Phase I (2026-2031), proposed for support through the National CAMPA Authority, brings together Assam, Arunachal Pradesh, Bihar, Uttar Pradesh and West Bengal, with a focus on scientific monitoring, protection, habitat restoration and management, translocation planning, coexistence and capacity building. It seeks not only to consolidate the existing populations but also to support the species' expansion into suitable areas in Bihar and Arunachal Pradesh.

The rhino's habitats are also important for swamp deer, wild buffalo, elephants, tigers, grassland birds and several smaller species. Grasslands are dynamic ecosystems that require science-based management to prevent degradation, inappropriate succession and the spread of invasive species. The Rhino Conservation Action Plan provides for mapping grasslands and wetlands, identifying invasive species, prioritising habitats for intensive restoration and developing protected area-specific management protocols.

This species-focused effort is complemented by a national initiative. A five-year (2026-2031) project on the Comprehensive Assessment of Indian Grasslands, to be implemented by the Wildlife Institute of India, Indian Council of Forestry Research and Education and Forest Survey of India, will assess grassland extent, ecological condition, biodiversity, degradation, ecosystem services and carbon potential. It will support a National Grassland Atlas, restoration priorities and long-term management guidelines.

Flooding is intrinsic to landscapes such as Kaziranga. But the increasing frequency and intensity of extreme climatic events can create new conservation pressures. Maintaining access to higher ground, securing ecological connectivity, protecting dispersal routes and managing habitats will be important. The National Conservation Strategy recognises climate-resilient management as part of the protection framework for the species.

Technology, too, has an expanding role. Modern surveillance, spatial monitoring, veterinary diagnostics, genetic tools and decision-support systems can reinforce traditional fieldcraft. No technology, however, can substitute the forest guards, watchers, mahouts, veterinarians and field officers who patrol these landscapes. Equally important are the communities living around rhino habitats. The future of the species depends on conservation being seen not as an isolated governmental activity but as a shared enterprise.

India's experience has also shown the importance of cooperation beyond state and national boundaries. At the Second Asian Rhino Range States Conservation Meeting held in New Delhi in 2019, India joined Bhutan, Indonesia, Malaysia and Nepal in adopting the New Delhi Declaration to strengthen conservation cooperation for Asian rhinoceros species. The Centre and the rhino-bearing states have since continued to work within this broader framework.

On World Rhino Day, September 22, we take satisfaction in the distance travelled. In protecting rhinos, we are also protecting the rivers, grasslands, wetlands, forests and communities that together make these landscapes among India's richest treasures. The rhino's recovery is a national achievement. Its future is a national responsibility.

The writer is Union Cabinet Minister for Environment, Forest & Climate Change

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How to ensure hospitals don't cheat patients



ABHAY SHUKLA

A DRIP set that costs a hospital Rs 11 carries a printed price of Rs 325. A syringe bought for under Rs 7 is marked for sale at Rs 57. These figures were recently released by Tukaram Mundhe, Maharashtra's Food and Drug Administration (FDA) commissioner, who has given several such examples of massive profiteering during the sale of medical items by hospitals. How does such inflation of margins impact the patient's bill? An earlier analysis of the bills of critical patients at private hospitals across Maharashtra, done as part of an audit process facilitated by Jan Arogya Abhiyan, gives striking answers.

Not one of the 46 medicine brands we examined was charged within the limit of 10 per cent markup on their purchase price, fixed during the pandemic. For nearly half the medicines, patients have been paying more than 150 per cent above what the hospital paid. A paracetamol drip bought for about Rs 33 was being billed at Rs 408. An antibiotic injection bought for about Rs 180 was being billed at Rs 950. The most common range of margins has been 200-400 per cent. The margins in the case of consumables can be even higher. A drip set bought for about Rs 12 may be typically billed at Rs 160, sometimes even Rs 270. An oxygen mask costing about Rs 55 can be charged up to Rs 570.

In 2016, a Department of Pharmaceuticals committee chaired by Sudhansh Pant noted that high MRPs were "a tool to cheat the helpless consumer" and that "fixing the MRP is, therefore, free for all and largely arbitrary in which the consumer is the net loser". This national body recommended capping trade margins on all medicines and implants, price-controlled or not, between 35 per cent and 50 per cent depending on their price. Yet 10 years later, these recommendations gather dust and patients continue to pay huge, unjustified margins on many medicines and consumables, which contributes to medical impoverishment.

Three steps are urgently needed. First, Maharashtra and other state FDAs can direct every private hospital to mention during billing, for medicines and consumables above a set value, both the price the hospital paid and what it is charging. A Rs 12 purchase printed beside a Rs 160 charge would tell consumers what is going on, supporting the logic for either the hospital to give a discount, or for the patient to purchase from alternative sources.

Second, the central government should expand statutory price regulation to all essential medicines and medical consumables (currently only 18 per cent of medicines are price controlled, that too in a manner that is often over-permissive). Such action would include appropriate amendments to the Drug Price Control Order, with the Department of Pharmaceuticals and National Pharmaceutical Pricing Authority playing key roles.

Third, patients must claim a right they rarely use. Maharashtra's FDA ordered in 2016, and again in 2022, that hospitals cannot force admitted patients to buy medicines only from the hospital's pharmacy. The National Consumer Commission has called such compulsion an unfair trade practice, and this right is also mentioned in the National Patients' Rights Charter. All hospitals must display this right and the FDA should enforce it. Until these steps are taken, for most patients admitted in private hospitals, MRP will continue to mean "Manipulated Raised Price".

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40 YEARS AGO
September 23, 1986


INDIAN EXPRESS
Labour panel split on restructuring industrial ties
Second tie in Test history
Soma bags India's second medal

Labour panel split

THE TRIPARTITE standing labour committee, which met in New Delhi to consider proposals for restructuring the industrial relations and dispute settlement system, found itself sharply divided on most of the points. While the Congress (I)-led INTUC and the employers' associations supported the move, central trade unions belonging to the opposition parties let it be known that they could not be a party to what the AITUC representative, Homi Daji, said was "regimentation of the workforce". Among the vocal critics of the proposals were the AITUC, CITU, BMS and UTUC (S).

Boy killed in police firing

A two-year-old boy was killed by a stray bullet in a police firing to quell a violent mob at Musafirkhana in Bombay. The firing was resorted to when the hawkers along the Musafirkhana road started brick-batting the customs and civic officials following a raid to confiscate the smuggled goods openly sold there.

Soma bags Asian Games medal

SHOOTER SOMA DUTTA won India's second medal of the Asian Games, a bronze in the women's air rifle event, but the cheer it brought was overshadowed as underdogs South Korea sprang a surprise and held India to a 1-1 draw in a Group A hockey match. India were lucky to be a goal up at half time. Mohinder Pal Singh scored from a 23rd-minute penalty corner.

Second tie in Test history

IT'S 5.18 and Greg Mathews prepares to bowl the fifth ball of his 40th over — the last of the innings. With one ball to go, all three results are still possible: A win for India, a draw, or a tie. Maninder Singh, number 11, prepares to take strike. The crowd holds its breath. 5.19 and history is made — it's a tie.